

**2011 02 07**

**LAKEWOOD CITY COUNCIL MINUTES**

Monday, February 07, 2011  
City of Lakewood  
City Council Chambers  
6000 Main Street SW  
Lakewood, WA 98499

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**CALL TO ORDER**

Mayor Richardson called the meeting to order at 7:00 p.m.

**ROLL CALL**

Councilmembers Present: 6 – Deputy Mayor, Mayor Pro Tem Don Anderson; Councilmembers Mary Moss, Mike Brandstetter, Jason Whalen, Walter Neary and Claudia Thomas.

Councilmembers Excused: 1 – Mayor Douglas Richardson

**FLAG SALUTE**

The Pledge of Allegiance was led by Deputy Mayor Anderson.

**REPORTS BY THE CITY MANAGER**

City Manager Neiditz reported that Kurt Sample was conducting a trial run of internet taping of the Council meeting.

City Manager Neiditz provided a status report on the sewer franchise indicating there will be further adjustment and discussion before bringing it back.

He also advised the Council that Pierce County Regional Council has an assembly scheduled for February 17, 2011 at Bates. All Council members are invited and should RSVP to Deanne Wegmann.

**PROCLAMATIONS AND PRESENTATIONS**

**Youth Council Report.**

The Youth Council reported about the Martin Luther King Jr. Celebration on January 15, 2011. It was also reported that the Youth Council is investigating current “green” policies in the city to develop a “Green Initiative”. March 19 is the father/daughter dance. A brief update was given about the schools in the area.

**Clover Park School District Board Report.**

Clover Park School District (CPSD) Board Director Dr. Martin Schaefer reported that Varsity Boys Basketball was ranked #2 in AA and Lakes in the top 5 for AAA. Lakes is in the second phase of success building. Hutloff Middle School is working on permitting to rebuild the school. Oakwood and Southgate are under consideration for an elementary school consolidation. State budget cuts are having an impact. February 14 is Valentine’s Day and the date of the next board meeting.

Councilmember Neary asked about the elementary school consolidation.

Councilmember Whalen asked about the International Baccalaureate program in light of budget cuts.

Councilmember Whalen asked about the next board meeting date.

Deputy Mayor Anderson asked about site selection.

Councilmember Thomas asked about joint efforts to save money, specifically working with Clover Park Technical College.

## **Review of Tacoma Power Rate Increases.**

Councilmember Neary absented from the dais due to employment with a competitor.

Ted Coates, director of Tacoma Public Utilities presented the following Power Point (handout as attached).

Councilmember Brandstetter asked about slide 6 with regard to neighbors paying for streetlights in Lakewood and about how billing works for that.

Councilmember Thomas asked about coordination between the three providers in Lakewood to maximize efficiencies.

## **PUBLIC COMMENTS**

Speaking before the Council were:

*Dennis Haugen, Lakewood, Washington*, commended Ken Severe for investigation. He went on to discuss investment, levies, etc.

*Shirley Peterson, representing Lakewood Arts Commission*, read a letter in gratitude for funding. She described the rotating art project in City Hall. The letter was submitted.

*Diane Formoso, on behalf of Caring for Kids*, spoke in keeping with the handout for their fundraiser. She described how the funding supports local kids.

*Jim Taylor, Tillicum*, discussed Habitat for Humanity in Tillicum.

*Ken Severe, Lakewood*, addressed transparency in government and identified missing pages from website, which are the vouchers.

## **C O N S E N T   A G E N D A**

- A. Approval of the minutes of the City Council meeting of January 18, 2011.
- B. Approval of the minutes of the City Council Retreat of January 22, 2011.
- C. Approval of the minutes of the City Council Study Session of January 24, 2011.
- D. Approval of payroll check numbers 237, 112370 to 112390, and direct deposit check numbers 114331 to 114588, in the amount of \$864,840.42, for the period January 1 – 15, 2011.
- E. Approval of claim voucher numbers 59642 to 59721, in the amount of \$258,373.89, for the period ending January 13, 2011.
- F. Approval of claim voucher numbers 59722 to 59744, in the amount of \$447,242.94, for the period ending January 13, 2011.
- G. Approval of claim voucher numbers 59745 to 59808, in the amount of \$383,263.58, for the period ending January 20, 2011.
- H. Approval of claim voucher numbers 59809 to 59835, in the amount of \$35,597.29, for the period ending January 20, 2011.
- I. Approval of claim voucher numbers 900206 and 59836 to 59897, in the amount of \$448,445.37, for the period ending January 27, 2011.
- J. Approval of payroll check numbers 238, 112234, 112236, 112237, 112391 to 112411, and direct deposit check numbers 114589 to 114853, in the amount of \$1,179,968.54, for the period January 16 – 31, 2011.
- K. Approval of claim voucher numbers 59898 to 59994, in the amount of \$195,780.02, for the period ending February 3, 2011.
- L. Items Filed in the Office of the City Clerk:

1. Community Development Block Grant Citizens Advisory Board and Human Services Funding Advisory Board public hearing minutes of September 9, 2010.
2. Community Development Block Grant Citizens Advisory Board meeting minutes of September 15, 2010, January 5, 12, 19 and 26, 2011.
3. Planning Advisory Board meeting minutes of November 17, 2010.
4. Landmarks & Heritage Advisory Board meeting minutes of December 2, 2010.

COUNCILMEMBER MOSS MOVED TO ADOPT THE CONSENT AGENDA AS PRESENTED. SECONDED BY COUNCILMEMBER THOMAS. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

## **R E G U L A R   A G E N D A**

### **APPOINTMENTS**

**Motion No. 2011-09 Appointing Robert Zawilski to serve on the Planning Advisory Board through February 11, 2016.**

COUNCILMEMBER WHALEN MOVED TO CONFIRM THE APPOINTMENT OF ROBERT ZAWILSKI SECONDED BY COUNCILMEMBER NEARY. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

### **UNFINISHED BUSINESS**

### **NEW BUSINESS**

**Motion No. 2011-10 Authorizing execution of an agreement with Stewart, Beall, MacNichols and Harmell for Public Defender Services from January 1, 2011 through December 31, 2011.**

City Manager Andrew Neiditz described the contract.

Councilmember Whalen asked about the competitive process.

Councilmember Whalen asked about the increase in costs and our ability to forecast the need for more services based on University Place.

Councilmember Whalen asked about the ability to increase fines and fees to help absorb additional costs.

Councilmember Moss asked about offender eligibility for public defender services and percentage that is not collected.

Councilmember Thomas asked about work crew.

Deputy Mayor Anderson asked about what portion of the increase was attributable to the addition of University Place versus increasing the regular rate.

COUNCILMEMBER MOSS MOVED TO AUTHORIZE EXECUTION OF AN AGREEMENT WITH STEWART, BEALL, MACNICHOLS AND HARMELL FOR PUBLIC DEFENDER SERVICES FROM JANUARY 1, 2011 THROUGH DECEMBER 31, 2011. SECONDED BY COUNCILMEMBER THOMAS. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

**Motion No. 2011-11 Awarding a bid to Northwest Cascade, Inc. in the amount of \$612,189.15 for the Grant Avenue Sewer Extension, Storm Drainage and Roadway Restoration, and Water Main Replacement Project.**

City Manager Andrew Neiditz introduced the motion and Greg Vigoren.

Greg Vigoren described the contract.

Councilmember Whalen asked about choice of road width and proximity to the trunk line. He also asked about curb, gutter and sidewalk.

Councilmember Brandstetter asked about schedule B, lines 13 and 14 in the contract.

Councilmember Whalen asked about overall satisfaction with the successful bidder.

Deputy Mayor Anderson asked about the spread between bidders and whether it reflects a trend.

Councilmember Neary commented about the low bid.

COUNCILMEMBER BRANDSTETTER MOVED TO AWARD A BID TO NORTHWEST CASCADE, INC. IN THE AMOUNT OF \$612,189.15 FOR THE GRANT AVENUE SEWER EXTENSION, STORM DRAINAGE AND ROADWAY RESTORATION, AND WATER MAIN REPLACEMENT PROJECT. SECONDED BY COUNCILMEMBER NEARY. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

## **BRIEFING BY THE CITY MANAGER**

City Manager Neiditz discussed the similarity between proposed sewer franchise fees and the amount paid by Tacoma Public Utilities.

City Manager Neiditz Introduced Steve Mauer to present the "Raising the Bar" program. The presentation followed a Power Point (no copy provided).

Councilmember Neary asked about whether this appeared on the agenda.

Councilmember Whalen asked about support from Bar and Tavern owners versus pushback.

Councilmember Brandstetter asked for clarification as to the role of the Liquor Control Board. He asked about potential impact of state budget cuts on the Liquor Control Board. He asked about a specific case, the City's response and the ability to publicize the matter.

Councilmember Whalen asked about call history for casinos versus other bars and taverns.

Mayor Pro-Tem Anderson commented on the legislature and local ability to enforce liquor cases.

## **CITY COUNCIL COMMENTS**

Councilmember Moss had no comment.

Councilmember Neary recalled that elementary school consolidation was on an earlier bond measure and would like a staff presentation on the issue.

Councilmember Brandstetter reported on the Korean-American event he attended last Saturday. Mandy Ma is incoming President.

Councilmember Brandstetter voiced concern about cursory notation reflected in minutes. He would like to see more detail, particularly for items that are subject to more debate or are not unanimous. The tape is not enough. Councilmember Thomas responded that our minutes are currently in keeping with Robert's Rules and inquired as to how to decide when to use greater detail. City Manager Neiditz pointed out that action minutes provide consistency through Citizen Advisory Boards and the Council.

Councilmember Thomas voiced a reminder that the Community Collaboration has a joint meeting with Washington State Military Kids and Families on Wednesday, February 9.

Councilmember Thomas also distributed a copy of Sound Transit Milestones and Phase Gate Report.

Councilmember Whalen reported on the Tuesday, February 1 public forum on sewers, held in Tillicum. He indicated that staff did a good job presenting and he felt that the discussion was well handled. He mentioned potential for use of CDBG funds.

Councilmember Whalen also asked about the Buxton contract. He would like to involve them in the question of public investment in the Towne Center.

Councilmember Whalen asked about website redesign and how to make packet materials more accessible on the website.

Councilmember Thomas asked about sewer hookup for Habitat for Humanity homes built in Tillicum.

Deputy Mayor Anderson noted that for the second year in a row the City Hall provided high quality chili although it did not win. Congratulations to Brink & Sadler.

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Deputy Mayor Anderson announced that post-adjourment, pursuant to RCW 42.30.140, the Council will meet in closed

session to discuss collective bargaining.

**ADJOURNMENT**

There being no further business, the meeting adjourned at 8:58 p.m.

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DON ANDERSON, DEPUTY MAYOR

ATTEST:

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ALICE M. BUSH, MMC  
CITY CLERK